

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: August 28, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE

On August 26, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”), filed Complainant’s Fourth Motion to Extend Deadlines (“MTE”). In the MTE, which NBG states is opposed by Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Marittima SPA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pet. Ltd. (collectively, “Evergreen”); and Yang Ming Marine Transport Corporation (“Yang Ming”). Pursuant to 46 C.F.R. ¶ 502.105, Evergreen and Yang Ming must file their opposition to the MTE by 5 p.m. August 31, 2026.

In addition, the parties are required to appear for a status conference to discuss the MTE and opposition to it on September 1, 2026, at 11 a.m. A Teams invitation will be sent to the designated representatives, and the parties are requested to confirm their attendance. The topics to discuss include the status of the former employee depositions including dates Mr. Josiah has indicated he is available, why previous depositions of fact or corporate witnesses in the other NBG cases are not available, why Evergreen and Yang Ming counsel are not available until the end of September to depose Mr. Josiah, the status of expert reports, and how to shift the remaining deadlines to maintain the deadline of December 15, 2026, the date currently set as the final deadline in this proceeding.



Linda S. Harris Crovella
Administrative Law Judge